

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
TYLIYAH OSBORNE, A MINOR UNDER THE AGE
OF 18, BY HER MOTHER AND NATURAL GUARDIAN,
RUSHAUN WALLACE

Plaintiff(s),

-against-

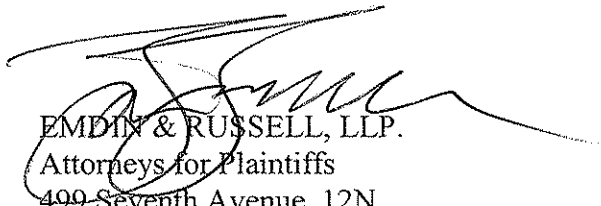
THE CITY OF NEW YORK, POLICE
OFFICER DOMINGO ROSARIO, SHIELD # 9472,
24TH PCT., INDIVIDUALLY AND AS A POLICE
OFFICER, P.O. JOHN DOE INDIVIDUALLY
AND AS A POLICE OFFICER, TRUE IDENTITY
UNKNOWN,Defendant(s).
-----X**SUMMONS**

INDEX NO.:

Dated Purchased:

Plaintiffs designate New York
County as the place of trial.
The basis of the venue is that
New York County is the Place
where the cause of action
arose.**To the above named Defendant(s):**

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney with twenty (20) days after the service of this summons, exclusive of the day of service (30) days after the service is complete if the summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
January 13, 2015
EMDIN & RUSSELL, LLP.
Attorneys for Plaintiffs
499 Seventh Avenue, 12N
New York, New York 10018
(212) 683-3995

Defendant's address:

City of New York
Office of the Corporation Counsel
100 Church Street
4th floor
New York, New York 10007

P.O. Domingo Rosario
Shield # 9472
c/o 24th pct.
151 West 100th Street
New York, NY, 10025-5146

POLICE OFFICER JOHN DOE

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
TYLIYAH OSBORNE, A MINOR UNDER THE AGE OF 18,
BY HER MOTHER AND NATURAL GUARDIAN,
RUSHAUN WALLACE

VERIFIED COMPLAINT

INDEX NO.
Dated Purchased:

Plaintiff(s),

-against-

THE CITY OF NEW YORK, POLICE
OFFICER DOMINGO ROSARIO, SHIELD # 9472,
24TH PCT., INDIVIDUALLY AND AS A POLICE
OFFICER, P.O. JOHN DOE INDIVIDUALLY
AND AS A POLICE OFFICER, TRUE IDENTITY
UNKNOWN,

Defendant(s).

-----X

The plaintiff Tyliyah Osborne, a minor, by her mother and natural guardian Rushaun Wallace complaining of the defendants, by their attorneys, Emdin & Russell, LLP., respectfully shows to this court and alleges:

1. Upon information and belief that at all times hereinafter mentioned, the defendant, the City of New York, hereinafter referred to as "City", was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York
2. Upon information and belief that at all times hereinafter mentioned, the defendant "City" its agents, servants and employees operated, maintained and controlled the Police Department of the City of New York hereinafter referred to as "NYPD" including all the police officers thereof.
3. Upon information and belief, at all times hereinafter mentioned, and on the 14th day of January, 2014 police officers employed by the defendant City, including, upon information and belief defendants Police Officer Domingo Rosario, thereafter referred to as "Rosario", and Police

Officer John Doe, identity presently unknown, thereafter referred to as “Doe”, were present and on duty at the location of the 24th pct. located at 100th Street between Columbus and Amsterdam Avenue, in the County of New York, State of New York hereinafter referred to as “the location” at or between the approximate hour 5:00 p.m. and thereafter.

4. Upon information and belief P.O. Domingo Rosario, hereinafter referred to as “Rosario” was employed by the City of New York, and/or “NYPD” and on the 14th day of January, 2014, and was assigned to 24th pct.

5. Upon information and belief Police Officer “Doe” was employed by the City of New York, and/or “NYPD” on the 14th day of January, 2014, and was assigned to the 24th pct. Doe is sued in a fictitious capacity as his identity is presently unknown..

6. That collectively Rosario and Doe will be collectively referred to as “the officers”.

7. That the plaintiffs Tyliyah Osborne and Rushaun Wallace at all relevant times hereunder were residents of the City and State of New York, and County of New York, residing at 875 Columbus Avenue, Apt. 12A, New York, New York.

8. That at all relevant times hereunder “the officers” were acting within their scope of employment as police officers employed by the “City”.

9. That “the officers” on or prior to January 14, 2014; were each individually hired, screened, trained, and supervised by the “City” including the agencies thereunder, including the “NYPD” and all supervisory officers of the named defendants, i.e “the officers”.

10. On January 14, 2014 at approximately 5:00 p.m., “the officers” were acting pursuant, and under the rules and regulations of the New York City Patrol Guidelines.

11. That the plaintiffs filed and served a timely Notice of Claim on “the City”.

12. That a 50 h hearing of plaintiff, Tyliyah Osborne was held on November 17, 2014.
13. That a 50 h hearing of plaintiff Rushaun Wallace was held on November 17, 2014.
14. That more than 30 days have elapsed since the Notices of Claim and intention to sue has been served upon the defendant, City of New York and the said defendant has neglected or refused to make any adjustment or payment thereof.
15. That this action is commenced within one year and 90 days after the cause of action arose.
16. That on January 14, 2014 at "the location" the "officers" were then and there present and were acting within the scope of their employment and under the direction of the "City", and "NYPD" as its' agents, servants and/or employee(s).
17. That at the above referenced date, time and "location" the plaintiff, Tyliyah Osborne, age 13, and was exiting a store near her residence whereupon the plaintiff was ordered to stop and thrown onto the gate of said store, where plaintiff was illegally searched, seized, handcuffed tightly, arrested and placed in a police vehicle.
18. Upon information and belief the defendants/officers had no reasonable suspicion or probable cause to detain, search and arrest the plaintiff.
19. Upon information and belief, the officers did not conduct a point-out, show-up or line-up to validate an arrest.
20. Upon information and belief the defendant/officers did not possess or had knowledge of any radio call or otherwise to establish reasonable suspicion or probable cause to detain, search and arrest the plaintiff.
21. Upon plaintiff's arrest, she was driven around until the defendants/officers then arrested another male teenager who may have participated in a robbery.

22. Plaintiff was transported to the 24th precinct, whereupon her arrival, the plaintiff was pushed into a metal bar which was placed across the Sergeant's desk.
23. Plaintiff was also taunted while a female officer was ordered and in fact searched the plaintiff.
24. Plaintiff remained handcuffed and placed, upon information and belief, in a police arraigned point-out identification procedure.
25. The alleged robbery victim stated plaintiff did not rob him upon realizing the plaintiff was a girl.
26. Despite the negative identification procedure, the plaintiff remained detained and handcuffed to a pole as she sat in a chair in a room with another arrested individual named "Aaron".
27. Plaintiff informed defendant Rosario that her handcuffs were too tight as she was handcuffed to a pole within the 24th pct.
28. Plaintiff remained handcuffed to a pole for at least 7 hours.
29. Plaintiff was not allowed to make a phone call.
30. Plaintiff was handcuffed so long, she feel asleep, awoke and feel asleep again before her release.
31. The defendant Rosario during the plaintiff's detention, told the plaintiff to "Shut the fuck-up" as she complained that her handcuffs were too tight.
32. Plaintiff again was told to "Shut the fuck-up" by defendant Rosario while she talked to "Aaron".
33. Plaintiff statement was ignored.

34. Additionally, plaintiff was repeatedly threatened by the defendants.

35. Tyliyah Osborne was questioned by police officers, without the presence of her mother, despite repeatedly requesting to call her mother.

36. Eventually, plaintiff's mother arrived at the location and observed the plaintiff handcuffed to a pole in the juvenile room.

37. Ms. Wallace was inside the precinct and she was denied access to her daughter, which she repeatedly requested.

38. The plaintiff was eventually told she was to "Get out of here, time to go," plaintiff while handcuffed to a pole and holding her pants up with one hand was shoved her belt and bag.

39. As plaintiff was trying to put on her belt and hold her bag and pants, while defendant Rosario was pulling plaintiff's arm tightly saying "Get out of here, time to go".

40. Plaintiff said "Get the fuck off of me" and defendant Rosario responded by punching plaintiff in the eye as other officers grabbed and pulled plaintiff onto the chair and wall.

41. Plaintiff was punched repeatedly being hit in the face while defendant Rosario yelled "I told you to get the fuck out of here."

42. Plaintiff was then charged with various charges such as Resisting Arrest, Disorderly Conduct and upon information and belief Assaulting an Officer.

43. Ms. Wallace observed her daughter being assaulted and yelled at the officers, whereupon, Ms. Wallace was forcibly pushed out and removed from "the location".

44. Plaintiff was taunted while crying and in pain as her eye swelled and turned black and blue.

45. Plaintiff was then taken to the hospital in shackles and handcuffs.

46. At no time did other officers intervene to prevent further abuse by defendant Rosario and/or Doe.

47. The plaintiff's criminal charges were dismissed.

48. This action falls within one of the exceptions of the CPLR.

**AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF FOR
FALSE IMPRISONMENT AND/OR UNREASONABLE DETENTION AGAINST THE
DEFENDANTS:**

49. The Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked "1" through "48" with the same force and effect as if more fully and at length set forth herein.

50. Beginning on or about the 14th day of January, 2014, at the approximate hours of 5:00 p.m. through the plaintiff's release from custody as set forth above, the defendants, by and through their agents, servants and/or employees intentionally handcuffed and imprisoned the plaintiff, Tyliyah Osborne, without any just cause or grounds therefore, and held her against her will.

51. That said imprisonment of an infant minor, violated patrol guidelines, and was caused by the defendants, their agents, servants, and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable grounds, or cause to believe that the plaintiff was guilty of a crime for which they could hold and imprison a thirteen year old, or that the defendants had just cause to imprison the plaintiff.

52. The plaintiff was not identified as committing a crime as previously stated but was falsely imprisoned and unreasonably detained for more than 7 hours.

53. The plaintiff was wholly innocent of any crime and did not contribute in any way or manner to her arrest and imprisonment by the defendants, their agents, servants and/or employees and she

was forced to submit to the aforesaid arrest, imprisonment and confinement entirely against her will.

54. That the defendants, their agents, servants and/or employees, as set forth above, intended to confine the plaintiff, Tyliyah Osborne; and that the plaintiff, Tyliyah Osborne, was conscious of her confinement; did not consent to the confinement; and the confinement was not otherwise privileged.

55. That by reason of the aforesaid false imprisonment and detention of the plaintiff, Tyliyah Osborne, she was subjected to great indignity, humiliation, pain and great distress of mind and body and the said plaintiff has been otherwise damaged.

56. That by reason of the aforesaid, Tyliyah Osborne has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

**AND AS FOR A SECOND CAUSE OF
ACTION FOR FALSE ARREST AGAINST THE DEFENDANTS
THE PLAINTIFF ALLEGES:**

57. The Plaintiffs repeat, reiterate and reallege each and every allegation contained in Paragraphs marked "1" through "56" with the same force and effect as if more fully and at length set forth herein.

58. That on the 14th day of January, 2014, between the approximate hour of 5:00 p.m. at "the location" the plaintiff was arrested by the above named defendants.

59. That said arrest was caused by the defendants, their agents, servants, and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable grounds, or cause to believe that the plaintiff, Tyliyah Osborne, was guilty of any crimes, or that the defendants had just cause to arrest the plaintiff.

60. The plaintiff, Tyliyah Osborne, was wholly innocent of any crime and did not contribute in any way or manner to her arrest by the defendants, their agents, servants and/or employees and was forced to submit to the aforesaid arrest, imprisonment and confinement entirely against her will.

61. That the defendants, their agents, servants and/or employees, as set forth above, intended to arrest and confine Tyliyah Osborne; the plaintiff was conscious of the arrest and confinement; the plaintiff did not consent to the arrest; and the arrest and the subsequent confinement was not otherwise privileged.

62. That by reason of the aforesaid false arrest and detention of Tyliyah Osborne she was subjected to great indignity, humiliation, pain and great distress of mind and body and the said plaintiff has been otherwise damaged.

63. Defendant knowing and/or negligently falsely arrested the plaintiff after she was exonerated of any wrong doing by the complainant.

64. That by reason of the aforesaid, Tyliyah Osborne has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

**AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF EACH PLAINTIFF FOR
BATTERY AND ASSAULT AGAINST THE DEFENDANTS
THE PLAINTIFFS ALLEGE:**

65. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked "1" through "64" with the same force and effect as if fully set forth herein.

66. That on the 14th day of January, 2014, the plaintiff Tyliyah Osborne was battered and assaulted at the approximate hour of 5:00 p.m. starting with her street detention where she was lawfully present and then she was illegally searched, detained, handcuffed, forcibly grabbed and forcibly touched/ assaulted which continued inside the 24th pct.

67. That the defendant, their agents, servants and/or employees, acting as agents on behalf of the defendant "City", within the scope of their employment, intentionally, and willfully battered and assaulted the plaintiff, in that they had the real ability to cause imminent harmful or offensive bodily contact and intentionally did an act which threatened to and did cause such contact to the plaintiff. That said acts caused apprehension of such offensive contact to the plaintiff, Tyliyah Osborne, and caused such batter and assault in and about her eye, lip, body and limbs. Plaintiff suffered a black eye and headaches as a result of the defendant's misconduct.

68. That the City is liable for the actions of its employees which were committed within the scope of their employment.

69. That by reason of the aforesaid intentional battery and assault, the plaintiff Tyliyah Osborne suffered physical and psychological injuries to her body and mind, and was rendered sick, sore, and lame, and among other things suffered conscious pain and suffering, and that she was otherwise damaged.

70. That by reason of the aforesaid assault and battery of Tyliyah Osborne has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

**AS AND FOR A FOURTH CAUSE OF ACTION AGAINST DEFENDANT CITY FOR
NEGLIGENCE**

71. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked "1" through "70" with the same force and effect as if more fully and at length set forth herein.

72. That the defendant "City" was negligent, careless and reckless in hiring, retaining, supervising and promoting as and for its employees, defendants/"the officers" herein, in that said

defendants/officers, as employees of the City of New York, were not qualified to be hired or retained or promoted as police officers, lacked the experience, deportment, skill, training and ability to be employed by the defendant "City"; to be retained by the defendant, "City"; and to be utilized in the manner that each was employed on the day in question.

73. That the defendant, "City", failed to exercise due care and caution in its hiring, retaining and/or promoting practices; in that the defendant "City" failed to adequately investigate said defendants/"officers' backgrounds; adequately screen and test officers; failed to adequately monitor officers; failed to properly enforce patrol guidelines and discipline officers who violate Patrol Guidelines; failed to properly train and retrain officers; and in that the defendant "City", its' agents, servants and/or employees, were otherwise careless, negligent and reckless.

74. That the aforesaid occurrence, to wit: and imprisonment, false arrest, battery and assault, and the resulting injuries to mind and body therefrom, were caused wholly and solely by reason of the negligence or deliberate indifference of the defendant "City", its' agents, servants and/or employees without any negligence on the part of the plaintiff contributing thereto.

75. The defendants were negligent in that upon plaintiff's exoneration, the plaintiff should have been released immediately, moreover, the defendant Rosario and Doe should not have battered/arrested and/or use excessive force against the plaintiff.

76. That by reason of the aforesaid, the plaintiff was injured in mind and body, and she was rendered sick, sore, and suffered by way to her eye, lip and head so remains, and the plaintiff, Tyliyah Osborne, has been otherwise damaged.

77. That by reason of the aforesaid, the plaintiff, Tyliyah Osborne, has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

**AS AND FOR A FIFTH AND SIXTH CAUSE OF ACTION:
ALLEGING VIOLATION OF CONSTITUTIONAL RIGHTS
UNDER 42 U.S.C. SECTION 1983, BY ROSARIO AND JOHN DOE IN THEIR
INDIVIDUAL CAPACITIES AND AS AGENTS OF
THE CITY OF NEW YORK, THE PLAINTIFFS ALLEGE:**

78. The plaintiff repeat, reiterate and reallege each and every allegation contained in paragraphs marked "1" through "77" with the same force and effect as if more fully and at length set forth herein.

79. That at all times hereinafter mentioned, the defendant /"officers" were employed by the defendant The City of New York and/or The New York City Police Department and each was acting under the color of their official capacities and their acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

80. That at all time, the defendant officers were acting pursuant to orders and directives from defendant, "City".

81. That during all times hereinafter mentioned, "Rosario and John Doe" acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of the "City" and/or New York City Police Department and that "the officers" were acting under the color and pretense of law, when they, individually and collectively, engaged in the illegal conduct set forth in this complaint to the injury of the plaintiff, and deprived her of her rights, privileges and immunities secured to her by the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States and the laws of the United States, and State of New York and U.S.C. Section 1983 and 1986.

82. That the unlawful and illegal conduct of the defendants deprived the plaintiff, Tyliyah

Osborne, of the following rights, privileges and immunities secured to her by the Constitution of the United States and of the State of New York:

- a) The right of plaintiff to be secure in her person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the Constitution of the United States; and,
- b) The right of plaintiff not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States; and
- c) The right not to be subjected to cruel and unusual punishment;
- d) The right to counsel;
- e) The right to the companionship and society of her mother;
- f) The right to be free from unreasonable detention;
- g) The right to remain silent;
- h) And, their conduct violated Family Court Act 305.2 et. al.

83. That by reason of the aforesaid violations the defendants actions such as: use of force, seizure of the plaintiff's person, false arrest and false imprisonment, assault and battery, handcuffing a minor, denying a minor access to counsel and denying a minor access to her mother, individually and collectively violated plaintiff's rights and privileges as provided to her in the Constitution of the United States of America, and provided to her in the Constitution of the State of New York, and laws thereto. The City defendant officers, and the City, violated 42 U.S.C. §1983.

84. That as a direct proximate result of the defendants actions the plaintiff was subjected to great indignities and humiliation, and pain and distress of mind and body and was humiliated and

defamed thereby.

85. That by reason of the aforesaid, the plaintiff Tyliyah Osborne and her mother Rashun Wallace were injured in mind and body, still suffers and upon information and belief, will continue to suffer great physical and mental pain, by the actions of "the officers", individually and collectively.

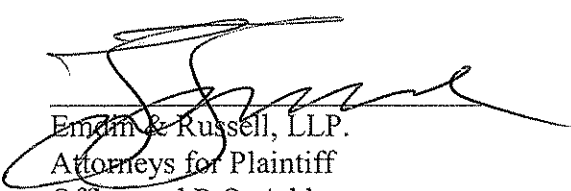
86. Defendants detention of the plaintiff, intentional search, arrest, false imprisonment, battery and assault, all were in violation of the plaintiff's rights pursuant to 42 U.S.C. 1983.

87. Defendant Rosario's beating of the plaintiff with the assistance of Doe resulting in a black eye, split lip and headaches which violate the aforementioned statute.

88. That by reason of the aforesaid, the plaintiff has been damaged in a sum of exceeding the jurisdiction of the lower courts, and seeks compensatory damages, plus, punitive damages, costs, attorneys fees, expert fees, as set forth and provided by 42 U.S.C. Sections 1983 and 1988, and such other relief as to the court may seem just and proper.

WHEREFORE, the plaintiff demands judgment against the defendants in a sum to be determined by the trier of fact, plus costs, punitive damages, attorney's fees and such other relief as to the court seems just and proper on the first through sixth causes of action, and such further relief as to the court seems just and proper.

DATED: New York, New York
January 13, 2015



Emdin & Russell, LLP.
Attorneys for Plaintiff
Office and P.O. Address
499 Seventh Avenue, Suite 12N
New York, New York 10018
(212) 683-3995

VERIFICATION

STATE OF NEW YORK]
] ss.:
COUNTY OF NEW YORK]

I, Rushaun Wallace, being duly sworn deposes and says: I am mother and natural guardian of the plaintiff, Tyliyah Osborne, in the within the action, I have read the foregoing Summons and Verified Complaint and know the contents hereof; the same is true to my own knowledge, or based upon information and belief.

Rushaun Wallace
Rushaun Wallace, am mother and
natural guardian of the plaintiff,
Tyliyah Osborne

Sworn to before me this
13th day of January, 2015

ROYCE RUSSELL ESQ
Notary Public, State of New York
No. 027066974667
Notary Public in New York County
Commission Expires 5/20/20
8/18/14

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

TYLIYAH OSBORNE A MINOR BY HER NATURAL GUARDIAN
AND PARENT RUSHAUN WALLACE

Plaintiff(s),

-against-

THE CITY OF NEW YORK, POLICE
OFFICER DOMINGO ROSARIO, SHIELD # 9472,
24TH PCT., INDIVIDUALLY AND AS A POLICE
OFFICER, P.O. JOHN DOE INDIVIDUALLY
AND AS A POLICE OFFICER, TRUE IDENTITY
UNKNOWN,

Defendant(s).

SUMMONS AND VERIFIED COMPLAINT

LAW OFFICES OF EMDIN & RUSSELL, LLP

Attorneys for Plaintiff(s)
499 Seventh Avenue, Floor 12N
New York, NY 10018
(212) 683-3995

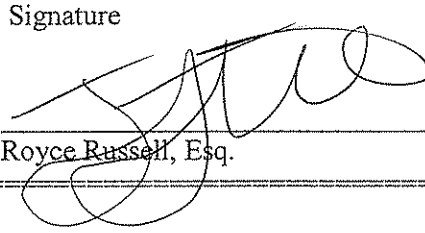
To: Corporation Counsel
100 Church Street
New York, NY. 10007

P.O. Domingo Rosario, Shield # 9472
c/o 24th pct.
151 West 100th Street
New York, NY, 10025-5146

Pursuant to 22 NYCRR 130-1.0, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: January 13, 2015

Signature



Royce Russell, Esq.

PLEASE TAKE NOTICE

- ☐ NOTICE OF ENTRY
that the within is a (certified) true copy of a duly entered in the office of the
clerk of the within named court on
- ☐ NOTICE OF SETTLEMENT
that a of which the within is a true copy
will be presented for settlement to the HON. one of the judges of the, on